

Shivram Singh v. Dakshinanchal Vidyut Vitran Nigam

Allahabad High Court · Division Bench · 15 February 2022 · Writ-C No. 33219 of 2021 · **Writ disposed; petitioner left to object under para 8.1 of the 2005 Code.**

HEADNOTE

A writ seeking to quash a final assessment notice for alleged electricity theft is not the proper course. The consumer must submit an objection before the concerned authority under paragraph 8.1 of the U.P. Electricity Supply Code, 2005. The Division Bench disposed of the petition without any opinion on merits, leaving that objection open before respondent No. 2.

FACTUAL SUMMARY

Shivram Singh filed Writ-C No. 33219 of 2021 in the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam and another, praying to quash a final assessment notice issued on account of alleged electricity theft. Counsel for the petitioner and for the respondents were heard. The consumer invoked the writ jurisdiction at the notice stage of the theft assessment, instead of first placing an objection before the assessing authority impleaded as respondent No. 2.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft assessment notice — writ versus clause 8.1 objection

HOLDING

The proper course for a consumer seeking to challenge a final assessment notice issued on alleged electricity theft is to submit an objection before the concerned authority in accordance with law under paragraph 8.1 of the U.P. Electricity Supply Code, 2005. The writ petition is disposed of without any opinion on merits, leaving that objection open before respondent No. 2. ¶ 1

PRINCIPLE TAGS

theft-recovery-writ-not-entertainable-s126-clause-8.1

The Court would not quash a theft-related final assessment notice on the writ side and relegated the consumer to the paragraph 8.1 objection before the assessing authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT FINAL ASSESSMENT NOTICE

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1